World Food Programme
Programme Alimentaire Mondial
Programa Mundial de Alimentos
برنامج الأغذية العالمي

SAVING LIVES
CHANGING LIVES

LONG TERM AGREEMENT
IQ23NF104 – LTA- B

for the provision of

Third Party Assessment

between

The World Food Programme
With Country Office at
Karada Maryam, Green Zone,
Diwan School, UN Compound
Baghdad, Iraq

and

STARS ORBIT CONSULTANTS AND MANAGEMENT (SOC)

with its registered offices located in Justice Tower, 5th Floor,
Office 25 Erbil, Iraq

(Vendor Number 50032683)

Nov 2023

IQ23NF104 – LTA - B

This Long Term Agreement is entered into between:

(1) **World Food Programme**, an autonomous joint subsidiary programme of the United Nations and the Food and Agriculture Organization of the United Nations, with an address of Karada Maryam, Green Zone, Diwan School, UN compound, Baghdad, Iraq ("**WFP**" and/or the **"Client**");

and

(2) **STARS ORBIT CONSULTANTS AND MANAGEMENT (SOC)**, a company with a registered office at Justice Tower, 5th Floor, Office 25 Erbil, Iraq ("the **Contractor**");

(each a **Party** and, jointly, the **Parties**).

(each a "***Party***" and, jointly, the "***Parties***").

WHEREAS:

WFP has decided, for its institutional purposes, to enter into a Long Term Agreement ("***LTA***" and / or the "***Agreement***") for the provision of Third Party Assessment (the "***Services***"**),** described in more detail in the annexes to this Agreement;

WFP floated a Request For Proposal ref: IQ23NF104 with the intention of selecting a suitable Contractor for the provision of the concerned Services; and

the Contractor, which represents to be a company specialised in the provision of the concerned Services, submitted an offer in response to the above-quoted RFP;

pursuant to the aforementioned RFP No: IQ23NF104, said offer of the Contractor was accepted by WFP; and

this document and its Annexes constitute a binding and enforceable Agreement between the Parties. The terms of this Agreement supersede and fully override any previous terms, conditions, agreement or contract pertaining to this matter.

NOW THEREFORE, the Parties agree as follows:

Article 1. <u>Effective Date of the Agreement</u>

1.1. This Agreement becomes effective on 21.11.2023 and shall expire on 2011.2024 (the **Term**), unless terminated earlier in accordance with the terms of this Agreement.

1.2. Upon the expiration of the Term, WFP shall have the option, at its sole discretion, to extend the duration of this Agreement for additional four years (1+1+1+1) based on satisfactory performance , under the same terms and conditions. WFP shall notify the Contractor of any such extension in writing.

Article 2. Scope of the Agreement

2.1. The Contractor shall provide the Services as and when requested through a formal Purchase Order, pursuant to Article 4.

2.2. The Agreement is entered into for the sole convenience of WFP and does not carry any commitment, express or implied, by WFP to make any purchase whatsoever. Such commitment being exclusively expressed if, when and as indicated in any Purchase Order issued by WFP hereunder during the Term of this Agreement.

2.3. The Agreement does not accord any exclusivity to the Contractor with respect to the provision of any Services contemplated within this Agreement.

2.4. The Contractor shall accord the same terms and conditions stipulated in this Agreement to any other entity within the United Nations system that wishes to avail itself of such terms, after obtaining written consent from an authorised representative of WFP. For the purposes of this Agreement, the authorised representative is the Country Director and Representative of WFP IRAQ Country Office.

2.5. Nothing in this Agreement may be considered as conferring upon the Contractor or upon its personnel, agents and contractors, any of the privileges and immunities enjoyed by WFP or WFP's personnel nor shall the Contractor request an exemption from any of its obligations under any law applicable to it on the basis of the privileges and immunities granted to WFP.

Article 3. Price

3.1. The prices of the Services contemplated within this Agreement and listed in Annex iii are ceiling prices. The prices may be lower but shall not exceed the ceiling prices listed in Annex iii.

3.2. The ceiling prices listed in Annex iii are fixed for the entire Term of this Agreement and for any subsequent extension foreseen in the Agreement, unless agreed otherwise in writing by the Parties.

3.3. The agreed currency of the Agreement and any Purchase Order issued hereunder shall be Uniter states Dollar.

3.4. Most favoured customer price certification: for transactions resulting from this Agreement, the Contractor certifies that WFP is not charged more than other clients for similar services and given similar circumstances.

Article 4. Ordering Services

4.1. Throughout the duration of this Agreement, WFP may request a quotation for certain Services from the Contractor. Following receipt of such request, the Contractor may submit an offer confirming its agreement to provide the Services as requested. Such offer may be lower but shall not exceed the ceiling prices listed in Annex iii of this Agreement.

4.2. WFP will review the offer submitted by the Contractor and may:

(i) decline the offer;

(ii) accept the offer by issuing a Purchase Order to the Contractor. The Contractor must acknowledge receipt of the Purchase Order as specified therein; and/or

(iii) when necessary, request the Contractor to change and/or amend its offer, which WFP may then accept or decline.

Article 5. Provision of Services

5.1. When engaged to provide Services as per Purchase Order, the Contractor shall perform the Services as described and in accordance with the requirements detailed in Annex ii at the costs contained in Annex iii, unless specifically detailed otherwise in the Purchase Order.

5.2. The Contractor shall perform the Services agreed between the Parties on the dates specified in this Agreement, its Annexes or in the Purchase Order.

5.3. The Contractor shall, with due care and diligence, perform the Services as requested under Article 2.1 and provide all personnel, materials, equipment, and other facilities as necessary.

5.4. For the purposes of the Services hereunder, the Contractor's personnel shall be governed by the provisions set forth in Article 2 of Annex I (The United Nations General Conditions of Contract – Contract for the Provision of Services (Rev Apr 2012)).

5.5. The Contractor undertakes to provide WFP a quarterly report with a full and comprehensive list of Purchase Orders placed by WFP, and Services performed by the Contractor. The report shall be submitted to the designated WFP Project Manager as listed in Annex IV.

Article 6. Travel Policy (Not applicable)

6.1. If and when WFP agrees to pay the Contractor for travel, which is related to the Services provided hereunder, the following conditions will apply:

(i) Quotation shall be provided for any applicable travel expenses.
(ii) Prior written approval must be obtained from WFP in a form of purchase order.
(iii) WFP will reimburse the Contractor for the actual costs incurred subject to the limits established within WFP's rules and regulations. The mentioned limits shall be communicated to the Contractor prior to the relevant ticket purchase.
(iv) The Contractor shall travel according to the most economical fare/class of travel and shall be responsible for purchasing the tickets immediately after obtaining WFP's approval for travel as per (i) above.
(v) The Contractor shall submit evidence of the costs incurred within 30 days of travel completion.

Article 7. Invoicing Procedures and Payments

7.1. After the performance of the Services requested under Purchase Order, the Contractor shall issue and deliver to WFP an invoice relating to the price and/or fees payable. Any invoice shall specify the information set forth in Article 7.4.

7.2. Invoices shall be delivered by the Contractor as follows:

(a) *Paper Invoices.* (not applicable)

(b) *Electronic Invoices*. WFP will accept electronic invoices from the Contractor provided that the Contractor can guarantee the authenticity of the origin and integrity of invoice data. Security measures include security network and communications links, access controls and the use of secure networks such as http-s. The invoices shall be sent to the addresses below:

(i) for Purchase Order issued by WFP, Iraq Country Office: a PDF version of an invoice shall be sent to Iraq.accountspayable@wfp.org from the Contractor's official e-mail address as specified herein: b.sadik@starsorbit.org

And keeping the following email address in copy

lia.pozzi@wfp.org

mohamed.salaheldin@wfp.org

amin.alhillo@wfp.org

saman.ahmed@wfp.org

For the avoidance of doubt, no invoice shall be presented to units/persons placing the order.

7.3. Digital signatures using vendor digital identities may be accepted by WFP as additional security measure. Invoices must be supported by the documentation specified in this Agreement.

7.4. The invoice will contain the following information:

- The reference number of this Long Term Agreement.
- Email of the Contractor;
- Invoice number and date;
- Contractor name;
- WFP vendor number;
- WFP Purchase Order number;
- Physical address of the Contractor;
- Contractor's banking instructions as contained below;
- Currency and amount to be paid;
- Description of Services provided, number of units or quantity and unit price;
- Contact person at WFP; and
- Any other information.

7.5. A payment advice will be sent by WFP to the email address provided by the Contractor on the relevant invoice and which shall match the Contractor's official e-mail address as specified under Article 7.2(b) of this Agreement. The Contractor shall provide this address on any invoice submitted to WFP.

7.6. *WFP payment conditions.* WFP will make the payment by bank transfer within thirty (30) days from the date of receipt of the invoice and all other documents specified in this Agreement and in the Purchase Order. Under no circumstances, WFP shall be liable to pay interest on amounts not paid within this period. WFP will not make payments in advance of delivery. WFP will not provide payment using letters of credit.

7.7. Payments by WFP will be made by bank transfer, in the currency detailed below, to the following account:

Bank Name:	INVESTBANK
Full Bank Address:	Iraq – Baghdad Shmeissani Branch
IBAN:	JO59JIFB0010033000021651720001
Swift Code:	JIFBJOAMXXX
Account Currency:	United States Dollar
Beneficiary:	STARS ORBIT CONSULTANTS AND MANAGEMENT (SOC)

Article 8. Termination for cause

8.1. WFP shall have the right to terminate this Agreement by giving thirty (30) calendar days' written notice in case the Contractor fails to comply with any of its obligations under the terms and conditions of this Agreement or the relevant Purchase Order. Such termination shall be without prejudice to any other of WFP's rights or remedies, and without any liability for termination charges or any other liability of any kind for WFP.

Article 9. Poor performance of the Services

9.1. If the Services performed by the Contractor do not conform to the requirements of this Agreement and/or the relevant Purchase Order, WFP may at no cost and without prejudice to its other rights and remedies under this Agreement, request the Contractor to take the measures necessary to remedy the improperly performed Services. If the Contractor fails to remedy its breach within fourteen (14) calendar days from WFP's request, WFP may procure such Services from other sources; hold the Contractor liable for any excess cost occasioned; and terminate the Agreement or the relevant Purchase Order with immediate effect.

Article 10. Remedies for late performance of the Services

10.1. In case of late performance of the Services, WFP shall be entitled, without prejudice to any other rights or remedies, to deduct liquidated damages from monies due to the Contractor, equivalent to 0.1 percent (0.1%) of the price of the Services as per the Purchase Order per day of delay, up to a maximum of ten percent (10%) of the price of the Purchase Order.

10.2. WFP shall have the right to deduct such amount from the Contractor's outstanding invoices, if any. It is understood that such liquidated damages shall only be applied when the delay is caused solely by the default of the Contractor.

10.3. The Contractor hereby agrees that the payment obligations set forth in this Article 10 are reasonable in light of the anticipated harm and the difficulty of estimation or calculation of actual damages and represent a genuine pre-estimate of WFP's loss. The Contractor hereby waives the right to contest any such payment as void or unenforceable, as amounting to a penalty or otherwise.

10.4. Acceptance of Services delivered late shall not be deemed a waiver of WFP's rights to hold the Contractor liable for any loss and/or damage resulting therefrom, nor shall it act as a modification of the Contractor's obligation to make future deliveries in accordance with the terms of this Agreement.

Article 11. United Nations General Conditions of Contract

11.1. The United Nations General Conditions of Contract – Contract for the Provision of Services (Rev Apr 2012), attached hereto as Annex I, shall apply to this Agreement with the following specifications:

(i) Any reference to "United Nations" shall be considered as a reference to "WFP", unless the context otherwise requires.

(ii) Neither this Agreement nor the provision of the stated Services is intended to confer any right or benefit on any third party.

Article 12. Tax Exemption

12.1. In addition to the exemption from any form of direct taxation regulated in Article 18 of the attached United Nations General Conditions of Contract, WFP represents that it is exempt from Value Added Tax (VAT) or equivalent in several jurisdictions, including – but not limited to – all European Union Member States. The Contractor's invoices hereunder shall be issued accordingly, giving due consideration to WFP's VAT exemption status.

Article 13. Anti-Fraud and Anti-Corruption Policy

13.1. The Contractor acknowledges and agrees that, in accordance with WFP's Anti-Fraud and Anti-Corruption Policy (WFP/EB.A/2021/5-B/1) ("the Policy"), WFP is highly risk averse towards Fraud, Corruption, Theft, Collusive, Coercive, and Obstructive Practices, Money Laundering and Financing of Terrorism (as such terms are defined below) in its activities and operations, and has zero tolerance for inaction.

13.2. The Contractor acknowledges that it and its officers, employees, contractors, subcontractors, agents and affiliates have the duty to act honestly and with integrity in the provision of goods and services to WFP and its partners. The Contractor acknowledges that it has the duty to ensure that WFP resources are safeguarded and used for their intended purposes, as authorized by WFP.

13.3. In particular, and without limitation to paragraph 2, the Contractor represents and warrants to WFP that it has not, and it shall not, at any time:

(a) perform any act or omit to perform any act, including any misrepresentation, in order to knowingly mislead, or attempt to mislead, WFP and/or any other party to obtain a financial or other advantage, or to avoid any obligation, to benefit itself and/or any other party ("Fraud");

(b) offer, give, receive or solicit, or attempt to offer, give, receive or solicit, directly or indirectly, anything of value to improperly influence the actions of WFP and/or any other party ("Corruption");

(c) take anything of value that belongs to WFP and/or another individual or entity without authorization ("Theft");

(d) enter into any arrangement with any other party or parties that are designed to achieve an improper purpose, including, but not limited to, improperly influencing the actions of WFP and/or any other party ("Collusive Practice");

(e) impair or harm, or threaten to impair or harm, directly or indirectly, WFP and/or any other party or the property of WFP and/or any other party to influence improperly the actions of a party ("Coercive Practice");

(f) deliberately destroy, falsify, alter or conceal evidence material to the investigation or making false statements to investigators in order to materially impede a duly authorized investigation into suspected cases of Fraud, Corruption, Theft, Collusive or Coercive Practices, Money Laundering or the Financing of Terrorism; and/or threaten, harass or intimidate WFP and/or any other party in order to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or engage in any act intended to materially impede the exercise of WFP's contractual rights of access to information ("Obstructive Practice");

(g) convert, transfer, acquire, possess or use property with the knowledge (or where knowledge may be reasonably presumed) that such property is derived from criminal activity or from an act of participation in such activity, including, but not limited to, concealing or disguising the true nature, source, location, disposition, movement, or rights with respect to, or ownership of, such property or aiding, abetting or facilitating such acts ("Money Laundering");

(h) provide or collect resources, by any means, directly or indirectly, with the intention that they should be used or in the knowledge that they are to be used, in full or in part, to benefit individuals and entities subject to measures imposed by the United Nations Security Council and appearing on the United Nations Security Council Consolidated List ("Financing of Terrorism", and together with Fraud, Corruption, Theft, Collusive Practice, Coercive Practice, Obstructive Practice and Money Laundering, "Prohibited Practices").

13.4. The Contractor shall communicate the Policy to its officers, employees, contractors, subcontractors, agents and affiliates and shall take all reasonable measures to ensure that such persons or entities do not engage in Prohibited Practices. The Contractor shall include equivalent anti-fraud and anti-corruption provisions in its agreements with any subcontractors and/or other agents which are in any way involved in the implementation of any project funded by WFP.

13.5. The Contractor will act on all reasonably suspected cases of any Prohibited Practice in line with the Policy. In particular, the Contractor shall promptly disclose to WFP (the WFP hotline is available for this purpose) any reasonably suspected Prohibited Practice or any attempt thereof. The Contractor shall fully cooperate, and shall take all reasonable steps to ensure that its officers, employees, contractors, subcontractors, agents and affiliates fully cooperate, with any investigation or review of reasonably suspected Prohibited Practices by WFP or its agents, including by allowing WFP or its agents to access and inspect its premises as well as any records, document and any other information, including financial, electronic and IT records, relevant to its contractual relationship with WFP, including allowing WFP to take copies of any such records, documents or information.

13.6. The Contractor expressly acknowledges and agrees that any breach of this clause by the Contractor or by any of its officers, employees, contractors, subcontractors, agents or affiliates constitutes a material breach of this Agreement, which entitles WFP to immediately terminate this Agreement without incurring any liability to Contractor.

13.7. Furthermore the Contractor expressly acknowledges and agrees that, in the event that WFP were to determine through an investigation or otherwise that a Prohibited Practice occurred, WFP shall have, in addition to its right to immediately terminate the Agreement, the rights to: i) apply and enforce the relevant sanctions in accordance with WFP internal regulations, rules, procedures, practices, policies and guidelines, including, but not limited to, debarment or referral of the matter to relevant national authorities when appropriate; and ii) recover all losses, financial or otherwise, suffered by WFP in connection with such Prohibited Practices, including by withholding relevant amounts from any subsequent disbursements.

Article 14. <u>Conflict of Interest</u>

14.1. The Contractor warrants that, at the time of signing this Agreement, no conflict of interest exists or is likely to arise in the performance of its obligations under this Agreement, other than those situations it has disclosed to WFP during the bidding process.

14.2. A conflict of interest shall arise when, in WFP's sole judgement, the Contractor could benefit or appear to benefit, directly or indirectly, at any stage in the Agreement from a relationship or arrangement of whatever nature:

(a) with an official or non-staff personnel of WFP, or;

(b) with a related contractor or subcontractor who provides to WFP goods and/or services that are directly or indirectly related to the execution of the present Agreement.

14.3. The following is a non-exhaustive list of scenarios which might constitute conflict of interest and which the Contractor must disclose to WFP:

(a) the Contractor has any kind of interest or ties with any WFP official or non-staff personnel of WFP; or

(b) the Contractor directly or indirectly controls, is controlled by, or is under common control with, another related contractor or subcontractor who provides to WFP goods and/or services that are directly or indirectly related to the execution of the present Agreement; or

(c) the Contractor receives or provides any direct or indirect payment from or to another related contractor or subcontractor who provides to WFP goods and/or services that are directly or indirectly related to the execution of the present Agreement; or

(d) the Contractor shares key managers with another related Contractor or subcontractor who provides to WFP goods and/or services that are directly or indirectly related to the execution of the present Agreement; or

(e) the Contractor, including its key employees, has a relationship, of whatever nature, with another related contractor, including its key employees, who provides to WFP goods and/or services that are directly or indirectly related to the execution of the present Agreement, directly or through common third parties, that puts it in a position to influence the contract of another related contractor or subcontractor, or the decisions of WFP; or

(f) the Contractor participates in another related contract either individually or as a partner in a joint venture or any similar partnership; or

(g) the Contractor has participated, directly or indirectly, in the preparation of the Specifications, Scope of Work or Terms of Reference included in the solicitation documents provided by WFP.

14.4. The Contractor shall immediately notify WFP if any conflict of interest arises or appears likely to arise during the duration of the Agreement and shall make full disclosure of all relevant information relating to the conflict.

14.5. Without prejudice to any other rights or remedies it may possess, WFP may immediately terminate this Agreement if the Contractor, in the reasonable judgement of WFP, has a conflict of interest.

Article 15. Subcontracting

15.1. The Contractor shall be solely and fully responsible for all services and obligations performed by its subcontractors. The terms of any subcontract shall be consistent with the terms and conditions of this Agreement.

15.2. The Contractor shall ensure that all of its subcontractors (whether an individual or legal entity) are checked and cleared against the latest available "**Consolidated United Nations Security Council (UNSC) Sanctions List**" which can be accessed on the UNSC's website.

15.3. The Contractor represents that none of its subcontractors (whether an individual or legal entity) is subject to any sanction or suspension imposed and notified by WFP as a consequence of any prohibited practices as defined in the Anti-Fraud and Anti-Corruption Clause, a non-performance or defective performance in a contract with WFP, or any unresolved dispute or claim with WFP.

15.4. The Contractor expressly acknowledges and agrees that any breach of this Article by the Contractor or by any of its subcontractors constitutes a material breach of the Agreement, which entitles WFP to immediately terminate the Agreement without incurring any liability whatsoever to the Contractor as a result.

15.5. In addition to its right to immediately terminate the Agreement along with any other rights available under this Agreement, WFP shall have the right to:

(i) apply and enforce the relevant sanctions in accordance with WFP internal regulations, rules, procedures, practices, policies and guidelines, including referral of the matter to national authorities where appropriate; and

(ii) recover all losses, financial or otherwise.

Article 16. Prevention of Sexual Exploitation and Abuse

16.1. WFP is committed to a policy of zero-tolerance towards sexual exploitation and abuse; it expects all its employees to comply with the Special Measures for Protection from Sexual Exploitation and Sexual Abuse set out in Circular OED2014/020 and the principles stated in WFP's Code of Conduct. It also expects all its contractors to apply similar ethical standards.

16.2. By entering into this Agreement, the Contractor undertakes to abide by the standards of conduct included in: (i) the Secretary-General's bulletin on Special Measures for Protection from Sexual

Exploitation and Sexual Abuse (ST/SGB/2003/13), including those listed in Section 3, and (ii) Article 28 (Sexual Exploitation) of Annex I to this Agreement.

16.3. Any failure by the Contractor to comply with the mentioned standards, to take preventive measures against sexual exploitation or sexual abuse, to investigate allegations thereof, or to take corrective action, shall constitute grounds for immediate termination of this Agreement.

Article 17. Representations and Warranties

17.1. The Contractor represents and warrants to WFP (which representations will be deemed to be repeated during the Term of this Agreement) that:

(a) it is duly organised and validly existing under the law of its place of incorporation;

(b) the execution, delivery and performance of this Agreement are duly authorised by all necessary corporate or other organisational action on its part and do not violate or conflict with any law applicable to it or its organisational documents and constitute or will constitute its legal, valid and binding obligations;

(c) it has all necessary material governmental and other third party permits, approvals and licenses required in connection with its execution, delivery and performance of this Agreement and such permits, approvals and licenses are in full force and effect; and

(d) the performance of its obligations under this Agreement does not violate any law or regulation to which it is subject.

Article 18. Notices

18.1. Any notice or other communication given to a Party in connection with this Agreement shall be in writing and shall be:

(a) delivered in originally executed hard copy by personal delivery, courier, recorded delivery, or registered post at the address of the Party foreseen in the preamble of this Agreement; or

(b) sent in soft copy by fax or e-mail to the address of the Contractor and WFP's authorised representatives specified in Annex IV to this Agreement. If so requested by WFP, notices sent by e-mail shall be sent with documents (if any) attached in encrypted Adobe PDF or CSV format. In this case, the sending Party shall hand deliver to the receiving Party a sealed envelope containing the password to access the encrypted file.

18.2. Any notice shall be deemed to have been duly given:

(a) in the case of personal delivery or courier, when delivered;

(b) in the case of recorded delivery or registered post, on the day of receipt indicated on the delivery slip;

(c) in the case of email delivery, at the time of transmission; but if the email has attachments and WFP requested their encryption, at the time of delivery of the password referred to in Article 18.1(b);

(d) in the case of facsimile delivery, at the time of transmission but only if a transmission report is generated by the sender's facsimile machine, recording a message from the receiver's facsimile machine confirming successful transmission.

Provided that, in each case when delivery of notices occurs on a day which is not a business day or after 5:00 p.m. on a business day, service shall be deemed to occur at 9:00 a.m. on the following business day.

Documents Constituting the Agreement

18.3. This Agreement comprises the following documents, which together constitute the entire agreement between the Parties. In the event of any conflict among the documents listed below, they shall take precedence in the order they are listed:

i. the main body of this Agreement;
ii. Annex I: The United Nations General Conditions of Contract – Contract for the Provision of Services (Rev Apr 2012);
iii. Annex II: Description of the Services Required (SOW/TOR);
iv. Annex III: Price list; and
v. Annex IV: Designation of the Parties' Representatives.

IQ23NF104 – LTA - B

In name and on behalf of **World Food Programme:**

_____ 21 November 2023

Ally Raza Qureshi on behalf of
Country Director and Representative

Date

In name and on behalf of **STARS ORBIT CONSULTANTS AND MANAGEMENT (SOC)**

I hereby accept the terms and conditions of the above LTA A Ref **IQ23NF104 – LTA - B**

_____ 21/11/2023

Basil Sadik
General Manager

Date

ANNEX I

The United Nations General Conditions of Contract

Contract for the Provision of Services (April 2012)

UNITED NATIONS NATIONS UNIES

GENERAL CONDITIONS OF CONTRACT

CONTRACTS FOR THE PROVISION OF SERVICES

1. **LEGAL STATUS OF THE PARTIES:** The United Nations and the Contractor shall also each be referred to as a "Party" hereunder, and:

   1.1 Pursuant, *inter alia*, to the Charter of the United Nations and the Convention on the Privileges and Immunities of the United Nations, the United Nations, including its subsidiary organs, has full juridical personality and enjoys such privileges and immunities as are necessary for the independent fulfillment of its purposes.

   1.2 The Contractor shall have the legal status of an independent contractor *vis-à-vis* the United Nations, and nothing contained in or relating to the Contract shall be construed as establishing or creating between the Parties the relationship of employer and employee or of principal and agent. The officials, representatives, employees, or subcontractors of each of the Parties shall not be considered in any respect as being the employees or agents of the other Party, and each Party shall be solely responsible for all claims arising out of or relating to its engagement of such persons or entities.

2. **RESPONSIBILITY FOR EMPLOYEES:** To the extent that the Contract involves the provision of any services to the United Nations by the Contractor's officials, employees, agents, servants, subcontractors and other representatives (collectively, the Contractor's "personnel"), the following provisions shall apply:

   2.1 The Contractor shall be responsible for the professional and technical competence of the personnel it assigns to perform work under the Contract and will select reliable and competent individuals who will be able to effectively perform the obligations under the Contract and who, while doing so, will respect the local laws and customs and conform to a high standard of moral and ethical conduct.

   2.2 Such Contractor personnel shall be professionally qualified and, if required to work with officials or staff of the United Nations, shall be able to do so effectively. The qualifications of any personnel whom the Contractor may assign or may propose to assign to perform any obligations under the Contract shall be substantially the same, or better, as the qualifications of any personnel originally proposed by the Contractor.

   2.3 At the option of and in the sole discretion of the United Nations:

      2.3.1 the qualifications of personnel proposed by the Contractor (*e.g.*, a curriculum vitae) may be reviewed by the United Nations prior to such personnel's performing any obligations under the Contract;

      2.3.2 any personnel proposed by the Contractor to perform obligations under the Contract may be interviewed by qualified staff or officials of the United Nations prior to such personnel's performing any obligations under the Contract; and,

      2.3.3 in cases in which, pursuant to Article 2.3.1 or 2.3.2, above, the United Nations has reviewed the qualifications of such Contractor's personnel, the United Nations may reasonably refuse to accept any such personnel.

   2.4 Requirements specified in the Contract regarding the number or qualifications of the Contractor's personnel may change during the course of performance of the Contract. Any such change shall be made only following written notice of such proposed change and upon written agreement between the Parties regarding such change, subject to the following:

      2.4.1 The United Nations may, at any time, request, in writing, the withdrawal or replacement of any of the Contractor's personnel, and such request shall not be unreasonably refused by the Contractor.

      2.4.2 Any of the Contractor's personnel assigned to perform obligations under the Contract shall not be withdrawn or replaced without the prior written consent of the United Nations, which shall not be unreasonably withheld.

2.4.3 The withdrawal or replacement of the Contractor's personnel shall be carried out as quickly as possible and in a manner that will not adversely affect the performance of obligations under the Contract.

2.4.4 All expenses related to the withdrawal or replacement of the Contractor's personnel shall, in all cases, be borne exclusively by the Contractor.

2.4.5 Any request by the United Nations for the withdrawal or replacement of the Contractor's personnel shall not be considered to be a termination, in whole or in part, of the Contract, and the United Nations shall not bear any liability in respect of such withdrawn or replaced personnel.

2.4.6 If a request for the withdrawal or replacement of the Contractor's personnel is *not* based upon a default by or failure on the part of the Contractor to perform its obligations in accordance with the Contract, the misconduct of the personnel, or the inability of such personnel to reasonably work together with United Nations officials and staff, then the Contractor shall not be liable by reason of any such request for the withdrawal or replacement of the Contractor's personnel for any delay in the performance by the Contractor of its obligations under the Contract that is substantially the result of such personnel's being withdrawn or replaced.

2.5 Nothing in Articles 2.2, 2.3 and 2.4, above, shall be construed to create any obligations on the part of the United Nations with respect to the Contractor's personnel assigned to perform work under the Contract, and such personnel shall remain the sole responsibility of the Contractor.

2.6 The Contractor shall be responsible for requiring that all personnel assigned by it to perform any obligations under the Contract and who may have access to any premises or other property of the United Nations shall:

2.6.1 undergo or comply with security screening requirements made known to the Contractor by the United Nations, including but not limited to, a review of any criminal history;

2.6.2 when within United Nations premises or on United Nations property, display such identification as may be approved and furnished by the United Nations security officials, and that upon the withdrawal or replacement of any such personnel or upon termination or completion of the Contract, such personnel shall immediately return any such identification to the United Nations for cancellation.

2.7 Within one working day after learning that any of Contractor's personnel who have access to any United Nations premises have been charged by law enforcement authorities with an offense other than a minor traffic offense, the Contractor shall provide written notice to inform the United Nations about the particulars of the charges then known and shall continue to inform the United Nations concerning all substantial developments regarding the disposition of such charges.

2.8 All operations of the Contractor, including without limitation, storage of equipment, materials, supplies and parts, within United Nations premises or on United Nations property shall be confined to areas authorized or approved by the United Nations. The Contractor's personnel shall not enter or pass through and shall not store or dispose of any of its equipment or materials in any areas within United Nations premises or on United Nations property without appropriate authorization from the United Nations.

3. **ASSIGNMENT:**

3.1 Except as provided in Article 3.2, below, the Contractor may not assign, transfer, pledge or make any other disposition of the Contract, of any part of the Contract, or of any of the rights, claims or obligations under the Contract except with the prior written authorization of the UN. Any such unauthorized assignment, transfer, pledge or other disposition, or any attempt to do so, shall not be binding on the United Nations. Except as permitted with respect to any approved subcontractors, the Contractor shall not delegate any of its obligations under this Contract, except with the prior written consent of the UN. Any such unauthorized delegation, or attempt to do so, shall not be binding on the United Nations.

3.2 The Contractor may assign or otherwise transfer the Contract to the surviving entity resulting from a reorganization of the Contractor's operations, *provided that:*

3.2.1 such reorganization is not the result of any bankruptcy, receivership or other similar proceedings; *and,*

3.2.2 such reorganization arises from a sale, merger, or acquisition of all or substantially all of the Contractor's assets or ownership interests; *and*,

3.2.3 the Contractor promptly notifies the United Nations about such assignment or transfer at the earliest opportunity; *and*,

3.2.4 the assignee or transferee agrees in writing to be bound by all of the terms and conditions of the Contract, and such writing is promptly provided to the United Nations following the assignment or transfer.

4. **SUBCONTRACTING:** In the event that the Contractor requires the services of subcontractors to perform any obligations under the Contract, the Contractor shall obtain the prior written approval of the United Nations. The United Nations shall be entitled, in its sole discretion, to review the qualifications of any subcontractors and to reject any proposed subcontractor that the United Nations reasonably considers is not qualified to perform obligations under the Contract. The United Nations shall have the right to require any subcontractor's removal from United Nations premises without having to give any justification therefor. Any such rejection or request for removal shall not, in and of itself, entitle the Contractor to claim any delays in the performance, or to assert any excuses for the non-performance, of any of its obligations under the Contract, and the Contractor shall be solely responsible for all services and obligations performed by its subcontractors. The terms of any subcontract shall be subject to, and shall be construed in a manner that is fully in accordance with, all of the terms and conditions of the Contract.

5. **INDEMNIFICATION**:

5.1 The Contractor shall indemnify, defend, and hold and save harmless, the United Nations, and its officials, agents and employees, from and against all suits, proceedings, claims, demands, losses and liability of any kind or nature brought by any third party against the United Nations, including, but not limited to, all litigation costs and expenses, attorney's fees, settlement payments and damages, based on, arising from, or relating to:

5.1.1 allegations or claims that the possession of or use by the United Nations of any patented device, any copyrighted material, or any other goods, property or services provided or licensed to the United Nations under the terms of the Contract, in whole or in part, separately or in a combination contemplated by the Contractor's published specifications therefor, or otherwise specifically approved by the Contractor, constitutes an infringement of any patent, copyright, trademark, or other intellectual property right of any third party; *or*,

5.1.2 any acts or omissions of the Contractor, or of any subcontractor or anyone directly or indirectly employed by them in the performance of the Contract, which give rise to legal liability to anyone not a party to the Contract, including, without limitation, claims and liability in the nature of a claim for workers' compensation.

5.2 The indemnity set forth in Article 5.1.1, above, shall not apply to:

5.2.1 A claim of infringement resulting from the Contractor's compliance with specific written instructions by the United Nations directing a change in the specifications for the goods, property, materials, equipment or supplies to be or used, or directing a manner of performance of the Contract or requiring the use of specifications not normally used by the Contractor; *or*

5.2.2 A claim of infringement resulting from additions to or changes in any goods, property, materials equipment, supplies or any components thereof furnished under the Contract if the United Nations or another party acting under the direction of the United Nations made such changes.

5.3 In addition to the indemnity obligations set forth in this Article 5, the Contractor shall be obligated, at its sole expense, to defend the United Nations and its officials, agents and employees, pursuant to this Article 5, regardless of whether the suits, proceedings, claims and demands in question actually give rise to or otherwise result in any loss or liability.

5.4 The United Nations shall advise the Contractor about any such suits, proceedings, claims, demands, losses or liability within a reasonable period of time after having received actual notice thereof. The Contractor shall have sole control of the defense of any such suit, proceeding, claim or demand and of all negotiations in connection with the settlement or compromise thereof, except with respect to the assertion or defense of the privileges and immunities of the United Nations or any matter relating thereto, for which only the United

Nations itself is authorized to assert and maintain. The United Nations shall have the right, at its own expense, to be represented in any such suit, proceeding, claim or demand by independent counsel of its own choosing.

5.5 In the event the use by the United Nations of any goods, property or services provided or licensed to the United Nations by the Contractor, in whole or in part, in any suit or proceeding, is for any reason enjoined, temporarily or permanently, or is found to infringe any patent, copyright, trademark or other intellectual property right, or in the event of a settlement, is enjoined, limited or otherwise interfered with, then the Contractor, at its sole cost and expense, shall, promptly, either:

5.5.1 procure for the United Nations the unrestricted right to continue using such goods or services provided to the United Nations;

5.5.2 replace or modify the goods or services provided to the United Nations, or part thereof, with the equivalent or better goods or services, or part thereof, that is non-infringing; *or*,

5.5.3 refund to the United Nations the full price paid by the United Nations for the right to have or use such goods, property or services, or part thereof.

6. **INSURANCE AND LIABILITY**:

6.1 The Contractor shall pay the United Nations promptly for all loss, destruction, or damage to the property of the United Nations caused by the Contractor's personnel or by any of its subcontractors or anyone else directly or indirectly employed by the Contractor or any of its subcontractors in the performance of the Contract.

6.2 Unless otherwise provided in the Contract, prior to commencement of performance of any other obligations under the Contract, and subject to any limits set forth in the Contract, the Contractor shall take out and shall maintain for the entire term of the Contract, for any extension thereof, and for a period following any termination of the Contract reasonably adequate to deal with losses:

6.2.1 insurance against all risks in respect of its property and any equipment used for the performance of the Contract;

6.2.2 workers' compensation insurance, or its equivalent, or employer's liability insurance, or its equivalent, with respect to the Contractor's personnel sufficient to cover all claims for injury, death and disability, or any other benefits required to be paid by law, in connection with the performance of the Contract;

6.2.3 liability insurance in an adequate amount to cover all claims, including, but not limited to, claims for death and bodily injury, products and completed operations liability, loss of or damage to property, and personal and advertising injury, arising from or in connection with the Contractor's performance under the Contract, including, but not limited to, liability arising out of or in connection with the acts or omissions of the Contractor, its personnel, agents, or invitees, or the use, during the performance of the Contract, of any vehicles, boats, airplanes or other transportation vehicles and equipment, whether or not owned by the Contractor; *and*,

6.2.4 such other insurance as may be agreed upon in writing between the United Nations and the Contractor.

6.3 The Contractor's liability policies shall also cover subcontractors and all defense costs and shall contain a standard "cross liability" clause.

6.4 The Contractor acknowledges and agrees that the United Nations accepts no responsibility for providing life, health, accident, travel or any other insurance coverage which may be necessary or desirable in respect of any personnel performing services for the Contractor in connection with the Contract.

6.5 Except for the workers' compensation insurance or any self-insurance program maintained by the Contractor and approved by the United Nations, in its sole discretion, for purposes of fulfilling the Contractor's requirements for providing insurance under the Contract, the insurance policies required under the Contract shall:

6.5.1 name the United Nations as an additional insured under the liability policies, including, if required, as a separate endorsement under the policy;

6.5.2 include a waiver of subrogation of the Contractor's insurance carrier's rights against the United Nations;

6.5.3 provide that the United Nations shall receive written notice from the Contractor's insurance carrier not less than thirty (30) days prior to any cancellation or material change of coverage; *and*,

6.5.4 include a provision for response on a primary and non-contributing basis with respect to any other insurance that may be available to the United Nations.

6.6 The Contractor shall be responsible to fund all amounts within any policy deductible or retention.

6.7 Except for any self-insurance program maintained by the Contractor and approved by the United Nations for purposes of fulfilling the Contractor's requirements for maintaining insurance under the Contract, the Contractor shall maintain the insurance taken out under the Contract with reputable insurers that are in good financial standing and that are acceptable to the United Nations. Prior to the commencement of any obligations under the Contract, the Contractor shall provide the United Nations with evidence, in the form of certificate of insurance or such other form as the United Nations may reasonably require, that demonstrates that the Contractor has taken out insurance in accordance with the requirements of the Contract. The United Nations reserves the right, upon written notice to the Contractor, to obtain copies of any insurance policies or insurance program descriptions required to be maintained by the Contractor under the Contract. Notwithstanding the provisions of Article 6.5.3, above, the Contractor shall promptly notify the United Nations concerning any cancellation or material change of insurance coverage required under the Contract.

6.8 The Contractor acknowledges and agrees that neither the requirement for taking out and maintaining insurance as set forth in the Contract nor the amount of any such insurance, including, but not limited to, any deductible or retention relating thereto, shall in any way be construed as limiting the Contractor's liability arising under or relating to the Contract.

7. **ENCUMBRANCES AND LIENS**: The Contractor shall not cause or permit any lien, attachment or other encumbrance by any person to be placed on file or to remain on file in any public office or on file with the United Nations against any monies due to the Contractor or that may become due for any work done or against any goods supplied or materials furnished under the Contract, or by reason of any other claim or demand against the Contractor or the United Nations.

8. **EQUIPMENT FURNISHED BY THE UNITED NATIONS TO THE CONTRACTOR**: Title to any equipment and supplies that may be furnished by the United Nations to the Contractor for the performance of any obligations under the Contract shall rest with the United Nations, and any such equipment shall be returned to the United Nations at the conclusion of the Contract or when no longer needed by the Contractor. Such equipment, when returned to the United Nations, shall be in the same condition as when delivered to the Contractor, subject to normal wear and tear, and the Contractor shall be liable to compensate the United Nations for the actual costs of any loss of, damage to, or degradation of the equipment that is beyond normal wear and tear.

9. **COPYRIGHT, PATENTS AND OTHER PROPRIETARY RIGHTS:**

9.1 Except as is otherwise expressly provided in writing in the Contract, the United Nations shall be entitled to all intellectual property and other proprietary rights including, but not limited to, patents, copyrights, and trademarks, with regard to products, processes, inventions, ideas, know-how, or documents and other materials which the Contractor has developed for the United Nations under the Contract and which bear a direct relation to or are produced or prepared or collected in consequence of, or during the course of, the performance of the Contract. The Contractor acknowledges and agrees that such products, documents and other materials constitute works made for hire for the United Nations.

9.2 To the extent that any such intellectual property or other proprietary rights consist of any intellectual property or other proprietary rights of the Contractor: (i) that pre-existed the performance by the Contractor of its obligations under the Contract, or (ii) that the Contractor may develop or acquire, or may have developed or acquired, independently of the performance of its obligations under the Contract, the United Nations does not and shall not claim any ownership interest thereto, and the Contractor grants to the United Nations a perpetual license to use such intellectual property or other proprietary right solely for the purposes of and in accordance with the requirements of the Contract.

9.3 At the request of the United Nations, the Contractor shall take all necessary steps, execute all necessary documents and generally assist in securing such proprietary rights and transferring or licensing them to the United Nations in compliance with the requirements of the applicable law and of the Contract.

9.4 Subject to the foregoing provisions, all maps, drawings, photographs, mosaics, plans, reports, estimates, recommendations, documents, and all other data compiled by or received by the Contractor under the Contract shall be the property of the United Nations, shall be made available for use or inspection by the United Nations at reasonable times and in reasonable places, shall be treated as confidential, and shall be delivered only to United Nations authorized officials on completion of work under the Contract.

10. **PUBLICITY, AND USE OF THE NAME, EMBLEM OR OFFICIAL SEAL OF THE UNITED NATIONS:** The Contractor shall not advertise or otherwise make public for purposes of commercial advantage or goodwill that it has a contractual relationship with the United Nations, nor shall the Contractor, in any manner whatsoever use the name, emblem or official seal of the United Nations, or any abbreviation of the name of the United Nations in connection with its business or otherwise without the written permission the United Nations.

11. **CONFIDENTIAL NATURE OF DOCUMENTS AND INFORMATION**: Information and data that is considered proprietary by either Party or that is delivered or disclosed by one Party ("Discloser") to the other Party ("Recipient") during the course of performance of the Contract, and that is designated as confidential ("Information"), shall be held in confidence by that Party and shall be handled as follows:

11.1 The Recipient shall:

11.1.1 use the same care and discretion to avoid disclosure, publication or dissemination of the Discloser's Information as it uses with its own similar Information that it does not wish to disclose, publish or disseminate; *and*,

11.1.2 use the Discloser's Information solely for the purpose for which it was disclosed.

11.2 Provided that the Recipient has a written agreement with the following persons or entities requiring them to treat the Information confidential in accordance with the Contract and this Article 11, the Recipient may disclose Information to:

11.2.1 any other party with the Discloser's prior written consent; *and*,

11.2.2 the Recipient's employees, officials, representatives and agents who have a need to know such Information for purposes of performing obligations under the Contract, and employees officials, representatives and agents of any legal entity that it controls, controls it, or with which it is under common control, who have a need to know such Information for purposes of performing obligations under the Contract, *provided that*, for these purposes a controlled legal entity means:

11.2.2.1 a corporate entity in which the Party owns or otherwise controls, whether directly or indirectly, over fifty percent (50%) of voting shares thereof; *or*,

11.2.2.2 any entity over which the Party exercises effective managerial control; *or*,

11.2.2.3 for the United Nations, a principal or subsidiary organ of the United Nations established in accordance with the Charter of the United Nations.

11.3 The Contractor may disclose Information to the extent required by law, *provided that*, subject to and without any waiver of the privileges and immunities of the United Nations, the Contractor will give the United Nations sufficient prior notice of a request for the disclosure of Information in order to allow the United Nations to have a reasonable opportunity to take protective measures or such other action as may be appropriate before any such disclosure is made.

11.4 The United Nations may disclose Information to the extent as required pursuant to the Charter of the United Nations, or pursuant to resolutions or regulations of the General Assembly or rules promulgated thereunder.

11.5 The Recipient shall not be precluded from disclosing Information that is obtained by the Recipient from a third party without restriction, is disclosed by the Discloser to a third party without any obligation of confidentiality, is previously known by the Recipient, or at any time is developed by the Recipient completely independently of any disclosures hereunder.

11.6 These obligations and restrictions of confidentiality shall be effective during the term of the Contract, including any extension thereof, and, unless otherwise provided in the Contract, shall remain effective following any termination of the Contract.

12. **FORCE MAJEURE; OTHER CHANGES IN CONDITIONS**:

12.1 In the event of and as soon as possible after the occurrence of any cause constituting *force majeure*, the affected Party shall give notice and full particulars in writing to the other Party, of such occurrence or cause if the affected Party is thereby rendered unable, wholly or in part, to perform its obligations and meet its responsibilities under the Contract. The affected Party shall also notify the other Party of any other changes in condition or the occurrence of any event which interferes or threatens to interfere with its performance of the Contract. Not more than fifteen (15) days following the provision of such notice of *force majeure* or other changes in condition or occurrence, the affected Party shall also submit a statement to the other Party of estimated expenditures that will likely be incurred for the duration of the change in condition or the event of *force majeure*. On receipt of the notice or notices required hereunder, the Party not affected by the occurrence of a cause constituting *force majeure* shall take such action as it reasonably considers to be appropriate or necessary in the circumstances, including the granting to the affected Party of a reasonable extension of time in which to perform any obligations under the Contract.

12.2 If the Contractor is rendered unable, wholly or in part, by reason of *force majeure* to perform its obligations and meet its responsibilities under the Contract, the United Nations shall have the right to suspend or terminate the Contract on the same terms and conditions as are provided for in Article 13, "Termination," except that the period of notice shall be seven (7) days instead of thirty (30) days. In any case, the United Nations shall be entitled to consider the Contractor permanently unable to perform its obligations under the Contract in case the Contractor is unable to perform its obligations, wholly or in part, by reason of *force majeure* for any period in excess of ninety (90) days.

12.3 *Force majeure* as used herein means any unforeseeable and irresistible act of nature, any act of war (whether declared or not), invasion, revolution, insurrection, terrorism, or any other acts of a similar nature or force, *provided that* such acts arise from causes beyond the control and without the fault or negligence of the Contractor. The Contractor acknowledges and agrees that, with respect to any obligations under the Contract that the Contractor must perform in areas in which the United Nations is engaged in, preparing to engage in, or disengaging from any peacekeeping, humanitarian or similar operations, any delays or failure to perform such obligations arising from or relating to harsh conditions within such areas, or to any incidents of civil unrest occurring in such areas, shall not, in and of itself, constitute *force majeure* under the Contract.

13. **TERMINATION**:

13.1 Either Party may terminate the Contract for cause, in whole or in part, upon thirty (30) day's notice, in writing, to the other Party. The initiation of conciliation or arbitral proceedings in accordance with Article 16 "Settlement of Disputes," below, shall not be deemed to be a "cause" for or otherwise to be in itself a termination of the Contract.

13.2 The United Nations may terminate the Contract at any time by providing written notice to the Contractor in any case in which the mandate of the United Nations applicable to the performance of the Contract or the funding of the United Nations applicable to the Contract is curtailed or terminated, whether in whole or in part. In addition, unless otherwise provided by the Contract, upon sixty (60) day's advance written notice to the Contractor, the United Nations may terminate the Contract without having to provide any justification therefor.

13.3 In the event of any termination of the Contract, upon receipt of notice of termination that has been issued by the United Nations, the Contractor shall, except as may be directed by the United Nations in the notice of termination or otherwise in writing:

13.3.1 take immediate steps to bring the performance of any obligations under the Contract to a close in a prompt and orderly manner, and in doing so, reduce expenses to a minimum;

13.3.2 refrain from undertaking any further or additional commitments under the Contract as of and following the date of receipt of such notice;

13.3.3 place no further subcontracts or orders for materials, services, or facilities, except as the United Nations and the Contractor agree in writing are necessary to complete any portion of the Contract that is not terminated;

13.3.4 terminate all subcontracts or orders to the extent they relate to the portion of the Contract terminated;

13.3.5 transfer title and deliver to the United Nations the fabricated or unfabricated parts, work in process, completed work, supplies, and other material produced or acquired for the portion of the Contract terminated;

13.3.6 deliver all completed or partially completed plans, drawings, information, and other property that, if the Contract had been completed, would be required to be furnished to the United Nations thereunder;

13.3.7 complete performance of the work not terminated; *and*,

13.3.8 take any other action that may be necessary, or that the United Nations may direct in writing, for the minimization of losses and for the protection and preservation of any property, whether tangible or intangible, related to the Contract that is in the possession of the Contractor and in which the United Nations has or may be reasonably expected to acquire an interest.

13.4 In the event of any termination of the Contract, the United Nations shall be entitled to obtain reasonable written accountings from the Contractor concerning all obligations performed or pending in accordance with the Contract. In addition, the United Nations shall not be liable to pay the Contractor except for those goods delivered and services provided to the United Nations in accordance with the requirements of the Contract, but only if such goods or services were ordered, requested or otherwise provided prior to the Contractor's receipt of notice of termination from the United Nations or prior to the Contractor's tendering of notice of termination to the United Nations.

13.5 The United Nations may, without prejudice to any other right or remedy available to it, terminate the Contract forthwith in the event that:

13.5.1 the Contractor is adjudged bankrupt, or is liquidated, or becomes insolvent, or applies for a moratorium or stay on any payment or repayment obligations, or applies to be declared insolvent;

13.5.2 the Contractor is granted a moratorium or a stay, or is declared insolvent;

13.5.3 the Contractor makes an assignment for the benefit of one or more of its creditors;

13.5.4 a Receiver is appointed on account of the insolvency of the Contractor;

13.5.5 the Contractor offers a settlement in lieu of bankruptcy or receivership; *or*,

13.5.6 the United Nations reasonably determines that the Contractor has become subject to a materially adverse change in its financial condition that threatens to substantially affect the ability of the Contractor to perform any of its obligations under the Contract.

13.6 Except as prohibited by law, the Contractor shall be bound to compensate the United Nations for all damages and costs, including, but not limited to, all costs incurred by the United Nations in any legal or non-legal proceedings, as a result of any of the events specified in Article 13.5, above, and resulting from or relating to a termination of the Contract, even if the Contractor is adjudged bankrupt, or is granted a moratorium or stay or is declared insolvent. The Contractor shall immediately inform the United Nations of the occurrence of any of the events specified in Article 13.5, above, and shall provide the United Nations with any information pertinent thereto.

13.7 The provisions of this Article 13 are without prejudice to any other rights or remedies of the United Nations under the Contract or otherwise.

14. **NON-WAIVER OF RIGHTS**: The failure by either Party to exercise any rights available to it, whether under the Contract or otherwise, shall not be deemed for any purposes to constitute a waiver by the other Party of any such right or any remedy associated therewith, and shall not relieve the Parties of any of their obligations under the Contract.

15. **NON-EXCLUSIVITY:** Unless otherwise specified in the Contract, the United Nations shall have no obligation to purchase any minimum quantities of goods or services from the Contractor, and the United Nations shall have no limitation on its right to obtain goods or services of the same kind, quality and quantity described in the Contract, from any other source at any time.

16. **SETTLEMENT OF DISPUTES**:

16.1 **AMICABLE SETTLEMENT**: The Parties shall use their best efforts to amicably settle any dispute, controversy, or claim arising out of the Contract or the breach, termination, or invalidity thereof. Where the

Parties wish to seek such an amicable settlement through conciliation, the conciliation shall take place in accordance with the Conciliation Rules then obtaining of the United Nations Commission on International Trade Law ("UNCITRAL"), or according to such other procedure as may be agreed between the Parties in writing.

16.2 **ARBITRATION**: Any dispute, controversy, or claim between the Parties arising out of the Contract or the breach, termination, or invalidity thereof, unless settled amicably under Article 16.1, above, within sixty (60) days after receipt by one Party of the other Party's written request for such amicable settlement, shall be referred by either Party to arbitration in accordance with the UNCITRAL Arbitration Rules then obtaining. The decisions of the arbitral tribunal shall be based on general principles of international commercial law. The arbitral tribunal shall be empowered to order the return or destruction of goods or any property, whether tangible or intangible, or of any confidential information provided under the Contract, order the termination of the Contract, or order that any other protective measures be taken with respect to the goods, services or any other property, whether tangible or intangible, or of any confidential information provided under the Contract, as appropriate, all in accordance with the authority of the arbitral tribunal pursuant to Article 26 ("Interim measures") and Article 34 ("Form and effect of the award") of the UNCITRAL Arbitration Rules. The arbitral tribunal shall have no authority to award punitive damages. In addition, unless otherwise expressly provided in the Contract, the arbitral tribunal shall have no authority to award interest in excess of the London Inter-Bank Offered Rate ("LIBOR") then prevailing, and any such interest shall be simple interest only. The Parties shall be bound by any arbitration award rendered as a result of such arbitration as the final adjudication of any such dispute, controversy, or claim.

17. **PRIVILEGES AND IMMUNITIES**: Nothing in or relating to the Contract shall be deemed a waiver, express or implied, of any of the privileges and immunities of the United Nations, including its subsidiary organs.

18. **TAX EXEMPTION**:

18.1 Article II, Section 7, of the Convention on the Privileges and Immunities of the United Nations provides, *inter alia*, that the United Nations, including its subsidiary organs, is exempt from all direct taxes, except charges for public utility services, and is exempt from customs restrictions, duties, and charges of a similar nature in respect of articles imported or exported for its official use. In the event any governmental authority refuses to recognize the exemptions of the United Nations from such taxes, restrictions, duties, or charges, the Contractor shall immediately consult with the United Nations to determine a mutually acceptable procedure.

18.2 The Contractor authorizes the United Nations to deduct from the Contractor's invoices any amount representing such taxes, duties or charges, unless the Contractor has consulted with the United Nations before the payment thereof and the United Nations has, in each instance, specifically authorized the Contractor to pay such taxes, duties, or charges under written protest. In that event, the Contractor shall provide the United Nations with written evidence that payment of such taxes, duties or charges has been made and appropriately authorized, and the United Nations shall reimburse the Contractor for any such taxes, duties, or charges so authorized by the United Nations and paid by the Contractor under written protest.

19. **MODIFICATIONS**:

19.1 Pursuant to the Financial Regulations and Rules of the United Nations, only the Chief of the United Nations Procurement Division, or such other Contracting authority as the United Nations has made known to the Contractor in writing, possesses the authority to agree on behalf of the United Nations to any modification of or change in the Contract, to a waiver of any of its provisions or to any additional contractual relationship of any kind with the Contractor. Accordingly, no modification or change in the Contract shall be valid and enforceable against the United Nations unless provided by a valid written amendment to the Contract signed by the Contractor and the Chief of the United Nations Procurement Division or such other contracting authority.

19.2 If the Contract shall be extended for additional periods in accordance with the terms and conditions of the Contract, the terms and conditions applicable to any such extended term of the Contract shall be the same terms and conditions as set forth in the Contract, unless the Parties shall have agreed otherwise pursuant to a valid amendment concluded in accordance with Article 19.1, above.

19.3 The terms or conditions of any supplemental undertakings, licenses, or other forms of agreement concerning any goods or services provided under the Contract shall not be valid and enforceable against the United Nations nor in any way shall constitute an agreement by the United Nations thereto unless any such undertakings, licenses or other forms are the subject of a valid amendment concluded in accordance with Article 19.1, above.

20. **AUDITS AND INVESTIGATIONS**:

20.1 Each invoice paid by the United Nations shall be subject to a post-payment audit by auditors, whether internal or external, of the United Nations or by other authorized and qualified agents of the United Nations at any time during the term of the Contract and for a period of three (3) years following the expiration or prior termination of the Contract. The United Nations shall be entitled to a refund from the Contractor for any amounts shown by such audits to have been paid by the United Nations other than in accordance with the terms and conditions of the Contract.

20.2 The United Nations may conduct investigations relating to any aspect of the Contract or the award thereof, the obligations performed under the Contract, and the operations of the Contractor generally relating to performance of the Contract at any time during the term of the Contract and for a period of three (3) years following the expiration or prior termination of the Contract.

20.3 The Contractor shall provide its full and timely cooperation with any such inspections, post-payment audits or investigations. Such cooperation shall include, but shall not be limited to, the Contractor's obligation to make available its personnel and any relevant documentation for such purposes at reasonable times and on reasonable conditions and to grant to the United Nations access to the Contractor's premises at reasonable times and on reasonable conditions in connection with such access to the Contractor's personnel and relevant documentation. The Contractor shall require its agents, including, but not limited to, the Contractor's attorneys, accountants or other advisers, to reasonably cooperate with any inspections, post-payment audits or investigations carried out by the United Nations hereunder.

21. **LIMITATION ON ACTIONS**:

21.1 Except with respect to any indemnification obligations in Article 5, above, or as are otherwise set forth in the Contract, any arbitral proceedings in accordance with Article 16.2, above, arising out of the Contract must be commenced within three years after the cause of action has accrued.

21.2 The Parties further acknowledge and agree that, for these purposes, a cause of action shall accrue when the breach actually occurs, or, in the case of latent defects, when the injured Party knew or should have known all of the essential elements of the cause of action, or in the case of a breach of warranty, when tender of delivery is made, except that, if a warranty extends to future performance of the goods or any process or system and the discovery of the breach consequently must await the time when such goods or other process or system is ready to perform in accordance with the requirements of the Contract, the cause of action accrues when such time of future performance actually begins.

22. **ESSENTIAL TERMS**: The Contractor acknowledges and agrees that each of the provisions in Articles 23 to 28 hereof constitutes an essential term of the Contract and that any breach of any of these provisions shall entitle the United Nations to terminate the Contract or any other contract with the United Nations immediately upon notice to the Contractor, without any liability for termination charges or any other liability of any kind.

23. **SOURCE OF INSTRUCTIONS:** The Contractor shall neither seek nor accept instructions from any authority external to the United Nations in connection with the performance of its obligations under the Contract. Should any authority external to the United Nations seek to impose any instructions concerning or restrictions on the Contractor's performance under the Contract, the Contractor shall promptly notify the United Nations and provide all reasonable assistance required by the United Nations. The Contractor shall not take any action in respect of the performance of its obligations under the Contract that may adversely affect the interests of the United Nations, and the Contractor shall perform its obligations under the Contract with the fullest regard to the interests of the United Nations.

24. **OFFICIALS NOT TO BENEFIT:** The Contractor warrants that it has not and shall not offer to any representative, official, employee, or other agent of the United Nations any direct or indirect benefit arising from or related to the performance of the Contract or of any other contract with the United Nations or the award thereof or for any other purpose intended to gain an advantage for the Contractor.

25. **OBSERVANCE OF THE LAW**: The Contractor shall comply with all laws, ordinances, rules, and regulations bearing upon the performance of its obligations under the Contract. In addition, the Contractor shall maintain compliance with all obligations relating to its registration as a qualified vendor of goods or services to the United Nations, as such obligations are set forth in the United Nations vendor registration procedures.

26. **CHILD LABOR**: The Contractor represents and warrants that neither it, its parent entities (if any), nor any of the Contractor's subsidiary or affiliated entities (if any) is engaged in any practice inconsistent with the rights set forth in the Convention on the Rights of the Child, including Article 32 thereof, which, *inter alia*, requires that a child shall be protected from performing any work that is likely to be hazardous or to interfere with the child's education, or to be harmful to the child's health or physical, mental, spiritual, moral, or social development.

27. **MINES**: The Contractor represents and warrants that neither it, its parent entities (if any), nor any of the Contractor's subsidiaries or affiliated entities (if any) is engaged in the sale or manufacture of anti-personnel mines or components utilized in the manufacture of anti-personnel mines.

28. **SEXUAL EXPLOITATION:**

    28.1 The Contractor shall take all appropriate measures to prevent sexual exploitation or abuse of anyone by its employees or any other persons engaged and controlled by the Contractor to perform any services under the Contract. For these purposes, sexual activity with any person less than eighteen years of age, regardless of any laws relating to consent, shall constitute the sexual exploitation and abuse of such person. In addition, the Contractor shall refrain from, and shall take all reasonable and appropriate measures to prohibit its employees or other persons engaged and controlled by it from exchanging any money, goods, services, or other things of value, for sexual favors or activities, or from engaging any sexual activities that are exploitive or degrading to any person.

    28.2 The United Nations shall not apply the foregoing standard relating to age in any case in which the Contractor's personnel or any other person who may be engaged by the Contractor to perform any services under the Contract is married to the person less than the age of eighteen years with whom sexual activity has occurred and in which such marriage is recognized as valid under the laws of the country of citizenship of such Contractor's personnel or such other person who may be engaged by the Contractor to perform any services under the Contract.

– oOOo –

ANNEX II

Description of the Services Required (TOR/SOW)

SAVING
LIVES
CHANGING
LIVES

WFP Iraq
Scope of Work for
Third-Party assessment
and monitoring services

2023 - 2024

WFP
World Food
Programme

September 2023

SCOPE OF WORK

Background

The World Food Programme (WFP) provides life-saving assistance and works with the Government of Iraq, national and international NGOs, and the private sector to deliver humanitarian assistance to conflict affected populations.

WFP first launched its Emergency Operation in Iraq in 2014. In January 2018, WFP Iraq moved to Interim Country Strategic Plan (ICSP), providing monthly food assistance to internally displaced persons (IDPs) in camps, Syrian refugees and Immediate Response Rations to newly or secondary displaced families.
WFP had launched the country strategic plan (CSP) in January 2020 to ensure by 2024 the vulnerable groups and the poor", including children, youth, women, the elderly, the disabled and IDPs inside Iraq will benefit from fair access to the integrated social protection that is comprehensive and sensitive to children, age, food security considerations, gender, and more shock-responsive. WFP Iraq continues to provide a support to the Education Ministry in the School Meals programme, while also implementing a resilience programme aiming at assisting Syrian refugees, returnees and local communities.

As those affected by conflict began the arduous task of rebuilding their livelihoods, WFP scaled up its Food Assistance for Assets (FFA) programme to facilitate vulnerable households' access to food through increased domestic production, restoration of agricultural livelihoods and protection of productive assets. The programme includes Climate adaption activities, the rehabilitation of agriculture and irrigation infrastructures through cash for work schemes, provision of agriculture inputs and equipment, enabling households to earn income and promoting the recovery of affected communities and the environment in targeted areas.

In addition, WFP developed the Tech for Food project in Lebanon and Iraq together with the WFP Innovation Accelerator based in Munich. Through training in IT, digital skillsets, Basic English language and coaching, targeted vulnerable youths from Syrian refugee camps, Iraqi IDPs and affected communities were empowered with knowledge and skills to boost their livelihoods and access the digital marketplace.

The recent WFP provides IDPs and refugees households with cash assistance. Companies with cash transfer capacity would implement the process of direct money transfer to entitled head of households.

WFP undertakes food security and market assessments, on-site monitoring and food security outcome monitoring across all governorates in Iraq. However, due to capacity limitations aligned to restricted movement of UN staff, WFP staff are unable to conduct these surveys in all the areas needed.

In this context, WFP is seeking the services of third-party entities to submit proposals (technical and financial) to undertake face to face and remote assessments and monitoring activities in the locations of WFP's operations, which may extend to across all governorates of Iraq.
The third party will carry out activities under the guidance of the WFP RAM unit.

Objectives

The objective of the TPM is to monitor WFP programmes and to provide evidence-based information and data on implementation, namely progress and results achieved against plans, experienced bottlenecks or constraints, and quality of implemented activities. Gender-balance is important at both a field and managerial level.

WFP is seeking Service Providers with strong facilitation and monitoring expertise to provide project support services in remote and hard-to-reach areas in Iraq. Specifically, the primary objectives of the third party will be:

- **To provide regular quantitative data collection (monthly) across the country of Iraq.**
- **To monitor the market price data.**
- **To provide qualitative data collection**
- **To provide summary report based on qualitative data collection and observations.**
- **Using Computer Assisted Telephone Interview(CATI) service to:**
  - **Provide statistically representative near-real time data on household food security, household access to food, market and health services and health status\illness at governorate level of Iraq collected daily and reported on a weekly and monthly basis.**
  - **Provide Market Functionality Index (reduced) of all the provincial capitals and other major markets every two weeks.**
  - **Ready to conduct rapid assessments with specific rates that will be accepted according to the assessment requirements.**

Roles and responsibilities

In person data collection service:

- To provide key-informant and market monitoring surveys to monitor and analyze the food availability in households and markets across the country by conducting face to face data collection surveys for household food security monitoring in Iraq under Vulnerability, Analysis and Mapping (VAM) project. The aim of this survey is to gather and monitor market price, trade information on key food and non-food commodities, as well as manual labour wage rates from key informants in areas with mobile network access constraints. The gathered data will be used to monitor the food security of the Iraqi population in the targeted areas.
- To conduct face to face household level Food Security Outcome Monitoring (FSOM), post-distribution, pre-assistance baseline and end-line surveys associated with the implementation of the WFP operations in Iraq.
- To conduct an agreed number of field visits to the locations selected by WFP to monitor the implementation process and assess the performance of the cooperating partners in conformity with the approved agreement and operational plan; The contracted partner should ensure adequate representation of female enumerators wherever possible as well as a right mix of Kurdish and Arabic speakers (as deemed necessary);
- In view of implementing Cash Assistance, WFP-VAM is planning to undertake Rapid Food security, Market Assessments and qualitative data collection (focus group discussion) to provide updated data to be used by WFP programme policy decision makers, Cash Working Group, and Food Security Cluster partners.
- Summary report should be produced after qualitative data collection and observation.
- WFP will enable the third party access to the required questionnaire forms on WFP MoDA server.
- The WFP Country Office will provide the work plan, sampling, and technical support, as necessary, to undertake the exercise.
- The gender of the enumerator should be considered to align with the gender of the respondent, particularly when dealing with female respondents.

For CATI service:

- Training: WFP will train operators on subject matters of the survey. Training will involve practice interviews to familiarize the operators with the variety of situations they are likely to encounter. Time will be spent going over survey concepts, definitions, and procedures, including a question-by question approach to be sure that operators can deal with any misunderstandings that may arise. Only operators who have received training from WFP will be authorized to make calls. If new operators join the team, WFP should be notified in advance so that arrangements for official training can be made. If any questions arise, team leader should collect these questions and address them to WFP staff in CO. WFP will supervise the first day of calls to provide quality assurance and adherence to protocol and implementation and plan subsequent visits for the monitoring purpose.
- Interviewer Job Aids and Refusal Aversion Responses: call operators will be given job aids which contain frequently asked question that participants might pose along with standardized responses. Similarly, operators will be given a list of refusal aversion codes, which addresses common adverse responses such as "I don't want to give out any personal information. I don't do surveys over the phone.
- Pre-test: A small pre-test (at least 5 calls per operator) will be conducted to ensure the protocol and data entry tool is accurate and can be properly administered by operators without adversely affecting survey cooperation. Pre-test data and record of the calls should immediately be shared with WFP. Upon the completion of the pre-test, WFP may change the questionnaire to improve respondent comprehension.
- Throughout the survey, WFP will provide all required support in covering any questions and required training to the operators.
- Call centre will monitor the quality of the calls to ensure an ongoing adherence to the protocol during data collection.
- In addition, WFP will have unfettered access to the relevant call centre.
- WFP will conduct random audits on occasion and request call log files. Therefore, the call center must record all placed calls so that they can share it with WFP upon request.
- There will be a weekly meeting through which the team comprising of WFP and selected call centre will deliberate on the progress of the data collection activities, proper mitigation measures for challenges identified, and as well document lessons learnt during this iterative process.

The WFP Country Office will provide the work plan, and technical support as necessary, to undertake the exercise.

Deliverables for data collection service:

The selected contractor will be expected to abide by the following reporting requirements and provide the WFP Country Office with the following deliverables

- Partner shall compile and clean the database with information on (i) market prices and availability of food and non-food commodities specified by WFP; (ii) trade information; and (iii) manual labour wage rates, Public Distribution System (PDS) and submit it in the excel spreadsheet format provided at the end of each week and throughout the duration of the agreement ;
- The data will be sent to WFP's VAM focal point or uploaded on WFP's server directly. This data is WFP's property and is not to be shared with third parties;

Type text here

- Anticipated Coverage under this agreement will cover WFP's operations, which may extend to across all governorates of Iraq.
- The contractor will be operating though WFP Platform (MoDA) or other platforms by own its tablets, linked up with WFP system and keep WFP up-to-date - via phone, email or in person - about the progress of monitoring throughout the process, including planning, desk review, field visits and feedback. Updates will flag any observations that require escalation to WFP management;
- Ensure all enumerators working on implementation monitoring have access to android devices (either mobile phones or tablets) and are trained on the usage by team leaders;
- Submit data electronically in the format provided by WFP within 24 hours of the visit or interview.
- WFP will send the raw data , which uploaded over WFP MoDA server, to the contractor for data cleaning process ,like obvious errors, inconsistencies, out-of-range values, spelling errors, erroneous categorization and impossible values, and exclude responses that are incomplete or redundant
- Progress-update meetings will be conducted between the contractor and the WFP programme staff on a monthly basis (as deemed necessary). The meetings will be via teleconference, in the sub office or Country Office if possible.

Respondent selection Inclusion Criteria for CATI: All respondents that are >17 are randomly selected through Random Digit
Dialling (RDD) across Iraq. The call centre will maintain a secure and confidential register of all numbers successfully reached for the purposes of re-sampling in future rounds.

Call centre operators:

- Language: All operators must be competent in Arabic and Sorani Kurdish.
- Working Days: The operators will cover a 7-days working week.
- Gender: It is required at least 60% of operators would be female in order to promote higher response rate among women respondents.

Administration of calls:

- Average call duration: The survey calls should last a maximum of 15 minutes.
- Number of call attempt/Call backs: Each phone number must be attempted no more than 5 times in a given round. The phone numbers need to be attempted multiple times per day at different times of the day and on multiple days of the week.
- Number of rings: operators are required to allow the phone to ring at least 8 times before exiting a case. If a personalized ringtone is used (e.g. music) on the line, operators are required to listen for at least 1 minute.
- If respondents want to be called at a different time, the operators should make a note of it and follow up.

Data entry and analysis:

- Data entry tool will be provided by WFP or Call centre can use its own data entry tool only if WFP has daily access to the data.
- WFP will conduct all data analysis.

Data Access:

- WFP will have daily access to the data. Call centre will ensure Data quality and checks should be performed before WFP can access the data.

Data Management:

- Data will be entered in a database system, which limits entry to only those enumerators making calls at a given time and includes appropriate categories (i.e. drop-down menu of divisions), logical skips and constraints.
- To ensure accuracy of key demographic questions and account for changes, call operators will verify and comment on any changes in demographic information, specifically the region/division of residence. In such cases, operators will clarify the region/division which was provided from the database.

Response Rate Information

Type text here

To monitor survey progress and report call statistics, a call log will be generated for every operator containing:

- Interview Number
- Number Of Contacts

- Contact Time
- Appointment Time
- Respondent ID

Production statistics: On a weekly basis, detailed statistics will be provided to WFP, including production statistics disaggregated by area in order to enable WFP to adjust the sample in potential future round.

- Accept: % of respondents who responded to the call and agreed to participate in the survey. Also includes participants who responded and accepted after multiple call attempts.
- Eligible: % of the respondents who responded to the call and met the selection criteria. Also includes respondents who met the selection criteria after the first responder passed on the call to the eligible respondent.
- Complete: % of respondents who accepted the call, were eligible and completed the entire survey. Include interviews that were completed in multiple call attempts.
- Response: % of calls where the operator talked to participant.
- Total calls attempted: All calls attempted including non-response. Include all attempted calls even if the survey was refused or incomplete or the participant was ineligible. If the same phone number is attempted more than once, only count it as 1 attempt
- Average call duration.

Data Protection

The contractor must comply with the WFP Guide to Personal Data Protection and Privacy to ensure that the data remains confidential and no phone numbers are to be shared with unauthorized persons or entities. The call centre may keep copies of the collected data during the duration of the contract for the purposes of improving data collection. Upon termination of the contract, all data collected for WFP which is in possession of the call centre must be deleted (See Annex D for details).

Deliverables and Payments

Deliverables will be used as the basis for invoice processing and payment. The service provider is expected to provide the agreed-upon data collection submissions and reports timely, in English, as per the formats provided by WFP, within the quantity and frequency specified below.

The Data should meet WFP quality standards.

For CATI service: WFP should be billed per correctly completed survey call. Unless formally instructed otherwise, WFP will not pay for any additional surveys that exceeds the weekly target by governorate. Meaning, if the weekly target for province X is 10 surveys and the call centre completes 15 surveys from the province, WFP will only pay for 10 completed surveys. The call centre will inform WFP immediately should there be difficulty in obtaining information for certain governorates.

The type of assessments and monitoring services

- Food security outcome monitoring;
- Rapid food security assessment;
- Comprehensive food security assessment;
- Emergency food security assessment;
- Market assessment;
- Market functionality index assessment (MFI);
- Market price data collection;
- (mVAM) food security assessment;
- Process/implementation monitoring;
- Asset monitoring;
- Post distribution monitoring;
- Community feedback mechanism (CFM);
- Climate change score;
- Other data collection and assessment.

Annex D
Personal Data Protection Conditions

1. WFP determines the purpose and means of the processing of any Personal Data (as defined below). The call centre shall process any such Personal Data on behalf of WFP and in accordance with this annex.
2. When collecting, recording, using, disclosing, transferring, storing, erasing or otherwise processing Personal Data on behalf of WFP in the context of this Agreement, the call centre shall ensure that each of its staff will,

a) observe relevant WFP policies, guidelines and written instructions on data protection, including; and

b) Comply with international data protection rules and principles and with the requirements of all data privacy laws and regulations applicable to the processing of data by the call centre.

For purposes of this Agreement 'personal data' means any information relating to an identified or identifiable individual (the 'Data Subject'). An identifiable person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.
3. In particular, the call centre shall:

a) when collecting Personal Data

(i) inform the Data Subject in a manner and language that is easily understandable to him/her of:

- the fact that call centre acts on behalf of WFP / humanitarian agency,
- the types of Personal Data to be collected / processed,
- the specified purpose for collecting and processing the Personal Data,
- that the data may be shared with any of the following entities:
  Agencies of the UN system, notably UNHCR, UNICEF, and any other UN agencies operating in the given country, regardless of whether there is an actual intention to share data with them, and IOM.
- the Data Subject's right to refuse to provide the information, and the Implications of withholding consent, and

(ii) in each case, as agreed with WFP, obtain the consent of the Data Subject prior to the processing of his/her Personal Data and record it in a way that evidence of the informed consent can be shown to WFP and third parties, in each case as agreed with WFP, and

b) collect and process Personal Data only insofar as necessary for the purposes of the implementation of the Programmes;

c) not to disclose, publish or transfer Personal Data to any third party unless with the express prior consent by WFP and, unless covered by the consent pursuant to (a)(i) above, the relevant Data Subject; if so consented, the call centre shall ensure that any third party which is granted access to such Personal Data, is bound by the same specified purpose, confidentiality, security and data protection obligations not less restrictive than those contained in this Annex ;

d) restrict access to Personal Data only to duly authorized personnel and only to the extent that such personnel need to know or require access in order to perform their duties in relation to the Programmes and are informed about the restrictions contained in this Clause;

e) transfer any Personal Data to WFP as permitted pursuant to this Clause in hard copy and/or electronic format. The electronic format shall be, besides being encrypted (preferably in 128 bit AES encryption), shared in the following format:

(i) **CSV format** – The comma separated values open standard format shares data in a flat file using CSV readers, high level programming language libraries or proprietary software systems such Microsoft Excel, Access or open office spreadsheet. This format should only be used when flat files (rows/columns) – household data without rich data or payment instruction details shall be shared.

(ii) **XML** – Allows for data export with pictures and biometric data. Image files including biometrics may excessively increase the size of the export file. Therefore, the use of CSV files for export/import between systems is recommended.

(iii) **JSON** (JavaScript Object Notation) – This is a defined data structure for hierarchical data sharing (object oriented data structure/template for household information). This format should be used in case of all transfer of Personal Data including pictures, or any other format determined by WFP in consultation with the call centre. The Personal Data shall be shared over secure e-mail servers or a secure ftp site.

f) establish and maintain appropriate technical and organizational measures against accidental or unlawful destruction, accidental loss, alteration or unauthorized disclosure to Personal Data in compliance with best industry standard or as agreed with WFP;

g) promptly notify WFP of:

(i) the occurrence, suspected or threatened occurrence of any of the circumstances listed in paragraph (g);
(ii) a breach of the obligations hereunder; and
(iii) a request by third parties including, without limitation, government authorities to obtain access to the Personal Data and refrain from granting the requested access to the Personal Data until explicitly authorized by WFP; and

h) Promptly notify WFP of any complaint by a Data Subject in respect of his/her Personal Data processed pursuant to this Clause and consult with WFP before taking any action as a result or in relation to such complaint.

4. Promptly upon the request of WFP or, at the latest, upon the termination of the contract, the call centre shall return to WFP all Personal Data and destroy and delete from any of its devices as well as from any other sources any Personal Data and shall send a certificate confirming such destruction and deletion to WFP once completed.
5. The provisions of this clause shall survive the termination or expiration of the contract.

Stars Orbit Consultants & Management Development

ANNEX E
Market Price Data Collection Sample

IRAQ - Field Monitors Data Collection Tool

1 2 3

Governorate: **Month:** **Year:**

Insert Price HERE

Governorate	Commodity	Week	Month	Year	Type	PRICE 4	Unit	Frequency	LCU	Monitoring Party
0	Wheat Flour	I	0	0			Kg	Weekly		
0	Chickpeas	I	0	0			Kg	Weekly		
0	Burghul	I	0	0			Kg	Weekly		
0	Rice	I	0	0			Kg	Weekly		
0	White Beans	I	0	0			Kg	Weekly		
0	Lentils	I	0	0			Kg	Weekly		
0	Meat (Beef)	I	0	0			Kg	Weekly		
0	Meat (Lamb/Goat)	I	0	0			Kg	Weekly		
0	Meat (Chicken)	I	0	0			Kg	Weekly		
0	Fresh Fish	I	0	0			Kg	Weekly		
0	Eggs	I	0	0			Unit	Weekly		
0	Fresh Milk	I	0	0			Kg	Weekly		
0	Powder Milk	I	0	0			Kg	Weekly		
0	Cheese	I	0	0			Kg	Weekly		
0	Tomatoes	I	0	0			Kg	Weekly		
0	Potatoes	I	0	0			Kg	Weekly		
0	Dates	I	0	0			Kg	Weekly		
0	Onions	I	0	0			Kg	Weekly		
0	Sugar	I	0	0			Kg	Weekly		
0	Oil (Vegetable)	I	0	0			L	Weekly		
0	Iodized Salt	I	0	0			Kg	Weekly		
0	Tea	I	0	0			Kg	Weekly		
0	Bread (Khoboz)	I	0	0			Unit	Weekly		
0	Kerosene	I	0	0			L	Weekly		
0	Cooking Gas	I	0	0			Unit	Weekly		
0	Benzine	I	0	0			L	Weekly		
0	Soap, toilet	I	0	0			Unit	Weekly		
0	Toothbrush	I	0	0			Unit	Weekly		
0	Toothpaste	I	0	0			Unit	Weekly		
0	Shampoo	I	0	0			Unit	Weekly		
0	Disinfection solution for cleaning	I	0	0			Unit	Weekly		
0	Sanitary napkins	I	0	0			Unit	Weekly		
0	Garbage Plastic Bags	I	0	0			Unit	Weekly		
0	Unskilled Labor	I	0	0			Day	Weekly		

Company: Stars Orbit Consultants and Management Development
Name: Basil A. Sadik
Title: Director
Date: 05/10/2023
Signature:

ANNEX III

Price List

SAVING
LIVES
CHANGING
LIVES

RFP No: IQ23NF0104 - Financial Proposal - Third-Party assessment and monitoring services.

2023 - 2024

WFP
World Food
Programme

Sr.	Description of required service	Unit of measurement	Cost per Unit (USD)
1	Field Visit (Questionnaire/Survey)	Per Visit	10.00
2	Face to face Interview at household or site level and can take up to 30-45 Minutes in average.	Per Interview	10.00
3	Conduct separate Focus Group Discussion for men and women as qualitative approach to gain in depth understanding of beneficiary feedback; FGD tool and methodology will be designed by WFP and shared with the service provider. The FGD can take up to 45-60 Minutes in average. Venue for FGD and snacks will be provided by WFP. If not possible, then WFP will provide guidance to service provider on venue and snacks while the service provider shall provide WFP a quotation and seek WFP prior approval, accordingly all cost shall be reimbursed to the services provider upon submission of original invoices	Per FGD	200.00
4	Weekly price data collection through face-to-face Interview across the main market per each governorate (food and non- food items), then the data uploaded monthly over WFP MoDA server.	Per form/Governorate Range (10- 45 items)	10.00
		Per form/Governorate Range (46- 100 items)	10.00
		Per form/Governorate Range (101-150 items)	10.00
5	Telephone interview1 at household or site level and can take up to 10-15 on average	Per interview	5.50

Discount:

The following volume discount scheme shall be in effect throughout the term of the LTA and extensions

- **Based on Cumulative Volume (WFP+ UN Agencies)**

Cumulative Volume /Value per Year	% Discount Year 1	% Discount Year 2	% Discount Year 3	% Discount Year 4
Up To $ 100,000	1%	1%	1%	1%
$100,001 - $300,000 Cumulative LTA expenditure	2%	2%	2%	2%
$300,001 - $500,000 Cumulative LTA expenditure	4%	4%	4%	4%
$500,001 - $1,000,000 Cumulative LTA expenditure	6%	6%	6%	6%
$1,000,001 - $2,000,000 Cumulative LTA expenditure	8%	8%	8%	8%
Over + $2,000,000 Cumulative LTA expenditure	10%	10%	10%	10%

Basil A. Sadik
Director
Stars Orbit Consultants and Management Development – SOC
www.starsorbit.org
Office phone: +962 6 585 1460, Fax: +962 6 585 4092
Jordan Mobile +962 79 719 9995, Iraq Mobile: +964 750 444 6444
b.sadik@starsorbit.org
P. O. Box 930580, Amman 11193, Jordan

ANNEX IV

Designation of Parties Representatives

World Food Programme

For the purpose of the performance of this Agreement, the WFP has designated the following as its authorized representatives:

The Client Unit responsible for the management of this Agreement is:

Name: Lia POZZI
Position: Head of VAM unit
Mobile : +964 (0) 7809299956
Email : lia.pozzi@wfp.org

Or Alternatively

Name: Saman AHMED
Position: VAM officer
Mobile : +964 (0) 7809156186
Email : saman.ahmed@wfp.org

The Procurement unit responsible for any process related actions to this Agreement is:

Name: Zeyad ALSAHLI
Position: Head of Supply Chain
Mobile: +964 (0) 7809150757
Email: zeyad.alsahli@wfp.org
Alternative Email: iraq.procurement@wfp.org

The WFP official authorized to approve this Agreement and any Amendment to it is:

Ally Raza Qureshi – WFP Country Director/Representative

The WFP shall notify the Contractor in writing of any changes to the above representatives.

STARS ORBIT CONSULTANTS AND MANAGEMENT (SOC)

The Contractor's representative authorised to approve this agreement and any Amendment to it is:

Name: Basil Sadik
Position: General Manager
Email: b.sadik@starsorbit.org - info@starsorbit.org
Tel: +962 6 585 1460 - +962 6 585 4092 - +964 78 0770 0777

The Contractor shall notify WFP in writing of any changes to the above representatives.